The National Company Law Appellate Tribunal (Salaries, Allowances and other Terms and Conditions of Service of Chairperson and other Members) Rules, 2015

Ministry of Corporate Affairs
Notification
New Delhi, the 21st September, 2015

[Amended upto date[1]]

G.S.R.728(E).- In exercise of the powers conferred by section 469 read with section 414 of the Companies Act, 2013 (18 of 2013), the Central Government hereby makes the following rules, namely:-

1. Short title and commencement:- (1) These rules may be called the National Company Law Appellate Tribunal (Salaries, Allowances and other Terms and Conditions of Service of Chairperson and other Members) Rules, 2015.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. Definitions:-

(1) In these rules, unless the context otherwise requires, -

(a) '**Act**' means the Companies Act, 2013 (18 of 2013);

(b) '**Chairperson**' means the Chairperson of the Appellate Tribunal appointed under sub-section (1) of section 412 of the Act;

(2) Words and expressions used in these rules and not defined, but defined in the Act shall have the meanings respectively assigned to them in the Act.

3. Pay. - (1) The Chairperson shall be entitled to a monthly pay of Rs. 90,000/- (fixed) and such other allowances as are admissible to an officer in the Cabinet Secretary's Scale of Rs.90,000/- (fixed).

(2) A Judicial Member and Technical Member shall be paid salary in the pay scale of Rs. 80,000/- (fixed) and such other allowances as are admissible to an officer in the Apex Scale of Rs.80,000/-(fixed).

(3) In case a person appointed as the Chairperson or a Member, as the case may be, is in receipt of any pension, the pay of such person shall be reduced by the gross amount of pension drawn by him.

4. Pension, Gratuity or Provident Fund. – (1) In case a serving Judge of the Supreme Court or a High Court, or a serving Judicial Member of the Tribunal or a person in the service of the Government is appointed to the post of Chairperson or Judicial Member or Technical Member, as the case may be, the service rendered in the Appellate Tribunal shall count for pension to be drawn in accordance with the rules of the service to which he belongs and he shall be governed by the provisions of the General Provident Fund (Central Services) Rules, 1960.

(2) In all other cases, the Members shall be governed by the provisions of the Contributory Provident Fund (India) Rules, 1962.

(3) Additional pension and gratuity shall not be admissible for service rendered in the Appellate Tribunal.

5. Leave. – (1) The Chairperson and every other Member shall be entitled to thirty days of Earned Leave for every year of service.

(2) The payment of leave salary during leave shall be governed by rule 40 of the Central Civil Services (Leave) Rules, 1972.

(3) The Chairperson and Members shall be entitled to encashment of leave in respect of the Earned Leave standing to his credit, subject to the condition that maximum leave encashment, including received at the time of retirement from previous service shall not in any case exceed the prescribed limit under the Central Civil Service (Leave) Rules, 1972.

6. Leave sanctioning authority. - In the case of the Chairperson, the competent authority to sanction the leave shall be the President of India and in the case of Members, the Chairperson shall be the leave sanctioning authority.

7. Travelling allowances.- (1) The Chairperson while on tour within India or on transfer (including the journey undertaken to join the Appellate Tribunal or on the completion of his tenure with the Tribunal to proceed to

his home town) shall be entitled to the travelling allowance, daily allowance, transportation of personal effects and other similar matters at the same rates as are admissible to the officer of the Central Government in the equivalent grade of Rs. 90,000/- (fixed).

(2) The Member while on tour within India or on transfer (including the journey undertaken to join the Appellate Tribunal or on the completion of his tenure with the Appellate Tribunal to proceed to his home town) shall be entitled to the travelling allowance, daily allowance, transportation of personal effects and other similar matters at the same rate as are admissible to the officer of the Central Government in the Apex Scale of Rs.80,000/- (fixed).

8. Official visits abroad. – (1) Official visits abroad by the Chairperson shall be undertaken in accordance with orders issued by the Central Government and he shall be entitled to draw such allowances in respect of such visits as are applicable to the officer of the Central Government in the equivalent grade of Rs. 90,000 (fixed).

(2) Official visits abroad by Member shall be undertaken in accordance with orders issued by the Central Government and he shall be entitled to draw such allowances in respect of such visits as are applicable to officers of the Central Government in the Apex Scale of Rs.80,000/-(fixed).

9. Leave Travel Concession. – (1) The Chairperson shall be entitled to Leave Travel Concession on the same terms as are applicable to officers of the Central Government in the equivalent pay grade of Rs. 90,000 (fixed).

(2) The Member shall be entitled to Leave Travel Concession on the same terms as are applicable to officers of the Central Government in the Apex Scale of Rs.80,000/-(fixed).

10. Facility for medical treatment.- The Chairperson and other Members shall be entitled to the medical facilities as provided in the Central Services (Medical Attendance) Rules, 1944.

11. Accommodation.- The Chairperson or Judicial Member or Technical Member shall have the option of claiming house rent allowance in

accordance with the rates prescribed by the Central Government for Group 'A' officers of equivalent grade pay or scale:

Provided that he shall not be eligible for house rent allowance in case he is declared eligible for General Pool Residential Accommodation and occupy Government accommodation allotted to him.

12. Facility of conveyance.- The Chairperson or a Judicial Member or Technical Member shall be entitled to the facility of staff car for journeys for official and private purposes in accordance with the facilities provided to Government servants in the corresponding pay grade as per Staff Car Rules, as amended from time to time.

13. Telephone facility- The Chairperson, Judicial Member and Technical Member shall be eligible for telephone facilities as admissible to a Group 'A' officer of the Central Government drawing an equivalent pay.

14. Conditions of service of Chairperson.- Where a serving or retired judge of the Supreme Court or a serving or retired Chief Justice of a High Court is appointed as the Chairperson, the service conditions unless specifically provided for in these rules, shall be as contained in the Supreme Court Judges (Salaries and Conditions of Service) Act, 1958, or the High Court Judges (Salaries and Conditions of Service) Act, 1954, as the case may be, and the rules made thereunder.

15. Conditions of service of Judicial Member.- Where a serving judge of a High Court is appointed as a Judicial Member, the service conditions, unless specifically provided for in these rules, shall be as contained in the the High Court Judges (Salaries and Conditions of Service) Act, 1954, as the case may be, and the rules made thereunder:

Provided that the service conditions, other than specifically provided in these rules , after his due date of retirement from service as a Judge of the High Court or expiry of the lien period, whichever is later, for the remaining period of his term of office shall be same as may, for the time being, be applicable to other employees of the Government of India of a corresponding status.

16. Oath of office and secrecy: - Every person appointed as the Chairperson or a Member, as the case may be, shall, before entering upon his office, make and subscribe an oath of office and secrecy, in Form-I and Form-II annexed to these rules.

17. Declaration of financial or other interest:- Every person, on his appointment as the Chairperson or Member, as the case may be, shall give a declaration in Form-III annexed to these rules, to the satisfaction of the Central Government, that he does not have any such financial or other interest as is likely to affect prejudicially his functions as Chairperson or Member.

18. Residuary provisions. – Matters relating to the terms and conditions of service of the President and Members with respect to which no express provision has been made in these rules, shall be same as may, for the time being, be applicable to other employees of the Government of India of a corresponding status.

19. Powers to relax: - The Central Government shall have power to relax any provision of these rules with respect to any class or category of persons.

[F. No. 1/30/2013-CL.V–Part–I]
AMARDEEP SINGH BHATIA, Jt. Secy.

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1. No amendment